

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12



NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD.,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA and RAYA BAKHIREV,

Respondents.

VERIFIED COMPLAINT

Complainants NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD. ("Complainants") by their undersigned attorney, Marcus A. Nussbaum, Esq., file this complaint against the respondents herein, alleging violations of the Shipping act of 1984, 46 U.S.C. §40101, et. Seq. (the "Shipping Act") as follows:

I. Complainants

1. Complainant CJ DELUZ NIGERIA LTD. is a foreign limited liability corporation formed under the laws of the country of the Federal Republic of Nigeria with its primary place of business at 166 Lawanson Road, Surulere, Lagos, Nigeria.

2. Complainant AVERS LOGISTICS LTD. is a foreign limited liability corporation formed under the laws of the country the Federal Republic of Nigeria with its primary place of business at 27 Alh. Kareem Akande Street, Sunrise Bus Stop, Wharf-Oshodi Road Olodi, Apapa, Lagos, Nigeria.

3. Complainant NNABUGWU CHINEDU ANDREW is an individual residing in 31 Alabi Oyo Street, Bucknor Eljigbo, State of Lagos, Federal Republic of Nigeria.

4. At all times relevant hereto, NNABUGWU CHINEDU ANDREW dealt directly with MTL on behalf of AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD.

II. Respondents

5. Respondent MARINE TRANSPORT LOGISTICS, INC. (“MTL”) is a New Jersey Corporation with its primary place of business at 63 New Hook Road, Bayonne NJ 07002.

6. Respondent ALLA SOLOVYEVA is an individual with a last known business address located at 63 New Hook Road, Bayonne NJ 07002.

7. Respondent RAYA BAKHIREV is an individual with a last known business address located at 63 New Hook Road, Bayonne NJ 07002.

8. At all times relevant hereto, Respondent ALLA SOLOVYEVA is and was an officer of MTL.

9. At all times relevant hereto, Respondent ALLA SOLOVYEVA is and was a shareholder of MTL.

10. At all times relevant hereto, Respondent ALLA SOLOVYEVA had and has signatory authority and direct control over MTL.

11. At all times relevant hereto, the operation and supervision of MTL’s day-to-day activities are and were conducted by ALLA SOLOVYEVA.

12. At all times relevant hereto, the operation and supervision of MTL’s day-to-day activities are and were conducted by RAYA BAKHIREV.

13. At all times relevant hereto, Respondent RAYA BAKHIREV is and was an employee of MTL.

14. At all times relevant hereto, Respondent RAYA BAKHIREV is and was employed by MTL as a General Manager.

15. At all times relevant hereto, Respondent RAYA BAKHIREV is and was employed by MTL as an accountant/payroll specialist.

16. At all times relevant hereto, MTL is and was licensed by the Federal Maritime Commission as non-vessel operating common carrier ("NVOCC") under license number 018709.

17. Respondent ALLA SOLOVYEVA is a "person" pursuant to the Shipping Act of 1984 as amended by the Ocean Shipping Reform Act of 1998 ("Shipping Act").

18. Respondent RAYA BAKHIREV is a "person" pursuant to the Shipping Act of 1984 as amended by the Ocean Shipping Reform Act of 1998 ("Shipping Act").

19. Upon information and belief, MTL has bond coverage with Great American Alliance Insurance Company, as required by the Shipping Act. MTL's NVOCC Bond No. is 91308.

20. At all times relevant hereto, MTL is and was an international shipping company, providing freight forwarding and logistics services to customers on a worldwide basis.

21. At all times relevant hereto, the range of services which MTL provided to complainants included pick-up of cars from auto actions, such as IAAI, CoPart and/or others, delivery of cars to the Port of Loading, ocean freight forwarding, air freight forwarding, cargo warehousing, customs clearance cargo consolidation services, and the following:

- (1) Ordering cargo to port;
- (2) Preparing and/or processing export declarations;
- (3) Booking, arranging for or confirming cargo space;
- (4) Preparing or processing delivery orders or dock receipts;

- (5) Preparing and/or processing ocean bills of lading;
- (6) Preparing or processing consular documents or arranging for their certification;
- (7) Arranging for warehouse storage;
- (8) Arranging for cargo insurance;
- (9) Clearing shipments in accordance with United States Government export regulations;
- (10) Preparing and/or sending advance notifications of shipments or other documents to banks, shippers, or consignees, as required;
- (11) Handling freight or other monies advanced by shippers, or remitting or advancing freight or other monies or credit in connection with the dispatching of shipments;
- (12) Coordinating the movement of shipments from origin to vessel; and
- (13) Giving expert advice to complainants concerning letters of credit, other documents, licenses or inspections, or on problems germane to the cargoes' dispatch.

22. At all times relevant to the instant lawsuit, Respondent ALLA SOLOVYEVA personally gave instructions to MTL not to ship Complainants' cargo.

23. At all times relevant to the instant lawsuit, Respondent RAYA BAKHIREV refused to respond to Complainants' requests for statements of account, invoices and other documentation relating to the application of monies received by MTL from Complainants to Complainants' statement of account with MTL.

24. At all times relevant hereto, ALLA SOLOVYEVA is and was the "Qualifying Individual" ("QI") on file with the Federal Maritime Commission with respect to MTL's license from the FMC.

25. While she was employed at MTL, RAYA BAKHIREV was, at all times relevant hereto, the "Qualifying Individual" ("QI") on file with the Federal Maritime Commission for an

NVOCC formerly licensed by the Federal Maritime Commission under the name World Express & Connection, Inc. (“WEC”) under license number 022519.

III. Jurisdiction

26. The Federal Maritime Commission (“FMC”) has subject matter jurisdiction over the claims in this action as this matter relates to contracts for carriage of goods by sea from ports of the United States in foreign trade and thus comes under the Shipping act of 1984, 46 U.S.C. §40101, et. Seq.

27. Complainants are seeking reparations for injuries caused to as a result of respondents’ violations of 46 U.S.C. §§41102 *et seq.*, including, but not limited to 41102(b), 41102(c), 40102(6)(A)(ii), 40901(a), 41104, and the FMC’s regulations at 46 C.F.R. Part 515, by:

- i. Failing to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property;
- ii. Unreasonably refusing to deal or negotiate;
- iii. Assuming responsibility for the safe transportation of the cargo from the point of receipt to the point of destination and failing in that responsibility;
- iv. Withholding documentation needed to secure the release of cargo;
- v. Failing to provide notice regarding the whereabouts of cargo [other cars];
- vi. Refusing to promptly ship new cargo ready for export and in possession of respondents until storage fees were paid for cargo unrelated to new cargo and which resulted in additional storage fees being charged as to new cargo which could have been avoided;
- vii. Refusing to promptly ship new cargo ready for export and in possession of respondents until inland freight fees were paid for cargo unrelated to new cargo and which resulted in additional storage fees being charged as to new cargo which could have been avoided;
- viii. Knowingly refusing to follow instructions from complainants as to how to apply complainants’ monies held by respondents in respondents’ bank account as a deposit for purposes of paying for ocean freight;

- ix. Provided freight forwarder services without proper licensing from the Federal Maritime Commission;
- x. Knowingly and willfully cutting in half, dismantling, and destroying two (2) automobiles belonging to complainants and which were shipped by respondents in a shipping container;
- xi. Knowingly and willfully providing false, inaccurate, and defective MTL Bills of Lading (containing numerous false and inaccurate information entries therein, including but not limited to incorrectly, falsely and fraudulently identifying complainants' location to be MTL's USA address in the "Consignee" box instead of the complainants with their Lagos, Nigeria address;
- xii. Knowingly and willfully providing to the United States Department of Commerce and United States Customs and Border Protection false and fraudulent information regarding the identity of the true shipper and consignee as fraudulently and falsely set forth on MTL Bills of Lading and receiving from the United States Department of Commerce an AES ITN Number and providing this number to Ocean Liner Mediterranean Shipping Co. ("MSC") and further placing said fraudulently obtained AES ITN number on an MTL Bill of Lading;
- xiii. Knowingly and willfully misdelivering Complainants' cargo; and
- xiv. Converting Complainants' cargo under the false premise of having exercised a maritime lien.

28. MTL is a non-vessel operating common carrier within the meaning of the Shipping Act and is and was licensed by the Federal Maritime Commission as a non-vessel operating common carrier under license number 018709, and thus falls under the jurisdiction of the Commission.

IV. Factual Background

29. Respondents ALLA SOLOVYEVA, RAYA BAKHIREV and MTL are engaged in the business of exporting used cars, motorcycles, and other cargo (from warehouse to warehouse) from the United States to ports abroad. Respondent MTL was hired to ship Complainants' vehicles described herein from a warehouse operated by MTL in the United States to various locations abroad via ocean going vessel.

30. Respondents ALLA SOLOVYEVA, RAYA BAKHIREV and MTL are in the business of providing services as an ocean transportation intermediary and operate as a non-vessel operating common carrier ("NVOCC"). Respondents arrange for the warehouse to warehouse transport of automobiles overseas for automobile dealerships and personal shippers, and during the course of the parties' business relationship had shipped a number of Complainants' automobiles from the United States to ports abroad.

31. MTL, as an NVOCC, contracts with its customers as principal, agreeing to transport their goods on a voyage that includes an ocean leg.

32. An NVOCC commonly issues house bills of lading to its customers in its own name, even though it does not operate the ship that will carry the goods on the ocean voyage.

33. The NVOCC buys space on the carrying ship like any other customer, receiving a bill of lading from the owner or charterer of that ship when the goods are loaded on board.

34. In shipping transactions in which MTL's customer is a Foreign Principal Party in Interest ("FPPI"), MTL acts on behalf of the foreign customer as a true and lawful agent and attorney-in-fact of the FPPI.

35. CJ DELUZ NIGERIA LTD. is not licensed and/or otherwise registered with the Federal Maritime Commission as a Non-Vessel Operating Common Carrier ("NVOCC").

36. AVERS LOGISTICS LTD. is not licensed and/or otherwise registered with the Federal Maritime Commission as a Non-Vessel Operating Common Carrier ("NVOCC").

37. Given its status as FPPI and not NVOCC, MTL cannot list and/or identify CJ DELUZ NIGERIA LTD. as "exporter" on an MTL Bill of Lading.

38. Given its status as FPPI and not NVOCC, MTL cannot list and/or identify AVERS LOGISTICS LTD. as "exporter" on an MTL Bill of Lading.

39. In shipping transactions conducted by MTL on behalf of its customers, MTL is responsible for completing all export and licensing filings with U.S. export regimes (e.g., U.S. Department of Commerce, U.S. Customs and Border Protection, etc.) on behalf of MTL's customers.

40. The Automated Export System (known as "AES") is a joint venture between U.S. Customs and Border Protection ("CBP"), the Foreign Trade Division of the Bureau of the Census (Commerce), the Bureau of Industry and Security (Commerce), the Directorate of Defense Trade Controls (State), other federal agencies, and the export trade community.

41. AES is the central point through which export shipment data required by multiple agencies is filed electronically to CBP.

42. Each and every Buyer Receipt for the purchase of an automobile, which is issued from the auto action known as IAAI, contains the following language: "this is a 'routed export transaction' per 19 CFR 30.3".

43. For the automobiles picked up by MTL from IAAI and subsequently exported by MTL for complainants, MTL reports various information to CBP and other federal agencies regarding each exported automobile through AES.

44. For the automobiles picked up by MTL from IAAI and subsequently exported by MTL for complainants, MTL is required to report through AES that these exports fall under the classification of 'routed export transaction' per 19 CFR 30.3.

45. There is an interlocking relationship between ALLA SOLOVYEVA, RAYA BAKHIREV, and MTL as evidenced by:

- a. pervasive control over MTL;
- b. serious ambiguity about the manner and capacity in which the various parties and their respective representatives are acting;

c. impermissible personal payments and asset transfers;

46. The closeness of their relationships indicates that ALLA SOLOVYEVA and RAYA BAKHIREV are the alter egos of MTL and piercing the corporate veil is necessary to avoid injustice and fundamental unfairness.

47. At all times relevant to the instant lawsuit, Respondents ALLA SOLOVYEVA, RAYA BAKHIREV and MTL were united in interest such that they are one and the same.

48. At all times relevant to the instant lawsuit, Respondents ALLA SOLOVYEVA and RAYA BAKHIREV knowingly and intentionally used the corporate form of MTL to perpetrate tortious and other wrongful conduct against the Complainants.

49. At all times relevant to the instant lawsuit, ALLA SOLOVYEVA, RAYA BAKHIREV and MTL arranged for pick-up of complainants' cars from auto actions, such as IAAI, CoPart and/or others, delivery of cars to the Port of Loading.

50. At all times relevant to the instant lawsuit, ALLA SOLOVYEVA, RAYA BAKHIREV and MTL decided which Port of Loading complainants' cars would be delivered to.

51. At all times relevant to the instant lawsuit, ALLA SOLOVYEVA, RAYA BAKHIREV and MTL had the discretion to refuse to pick up cars from auto actions, such as IAAI, CoPart and/or others, for delivery to the Port of Loading if MTL could not export the cars for any reason.

52. At all times relevant to the instant lawsuit, ALLA SOLOVYEVA, RAYA BAKHIREV and MTL had a duty to refuse to pick up cars from auto actions, such as IAAI, CoPart and/or others, for delivery to the Port of Loading if MTL could not export the cars for any reason.

53. At all times relevant to the instant lawsuit, ALLA SOLOVYEVA, RAYA BAKHIREV and MTL failed in their duty to refuse to pick up complainants' cars from auto actions, such as IAAI, CoPart and/or others, for delivery to the Port of Loading if MTL could not export the cars for any reason.

54. At all times relevant to the instant lawsuit, ALLA SOLOVYEVA, RAYA BAKHIREV and MTL:

- (a) ordered cargo to port;
- (b) prepared and/or processed export declarations;
- (c) booked, arranged for, and confirmed cargo space;
- (d) prepared and processing delivery orders and/or dock receipts;
- (e) processed ocean bills of lading;
- (f) were charged with the responsibility to immediately notify the customers of any problems resulting in MTL's inability to export an automobile;
- (g) cleared shipments in accordance with United States Government export regulations;
- (h) handled freight or other monies advanced by customers, and/or remitted freight or other monies or credit in connection with the dispatching of shipments, base upon the terms and conditions of invoices provided by MTL;
- (i) coordinated the movement of shipments from origin to vessel; and
- (j) gave expert advice to exporters concerning problems germane to the cargoes' dispatch.

V. Specific Facts Regarding the Subject Shipping Transactions

55. At all times relevant hereto, Complainants NNABUGWU CHINEDU ANDREW AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD are and were foreign buyers of automobiles and were located in the State of Lagos, Federal Republic of Nigeria.

56. At all times relevant hereto, Complainant NNABUGWU CHINEDU ANDREW AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD purchased cars from domestic auto actions, such as IAAI, CoPart and/or others, which were destined for export abroad.

57. The automobiles purchased by complainants from IAAI, CoPart and/or others, and which were picked up by MTL, were purchased for export only.

58. The Buyer Receipts for the purchase of an automobile, which are issued from the auto action known as IAAI, contain the following language: “this is a ‘routed export transaction’ per 19 CFR 30.3”.

59. Due to complainants’ need for the services of an ocean freight forwarder to perform the services needed to bring the automobiles to the Port of Loading and prepare them for export, Complainant NNABUGWU CHINEDU ANDREW retained MTL, and provided MTL with a Power of Attorney to act on behalf of himself, AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD., with regard to any transactions with the domestic auto actions related to the cars to be shipped (e.g., pickup of the cars from the auto auction, title signing, title forwarding etc.).

60. On October 12, 2017, Alla Solovyev emailed NNABUGWU CHINEDU ANDREW and stated in her email, as follows:

Mr. Chinnedu you are very good customer, and we are working with you for a very long time. You feel very comfortable with MTL, because you know that your cargo is safe and it will be Always loaded and shipped out. This is very important, because you live in Lagos, and you need Companies like MTL whom you can trust. I want to thank you for this.

61. At all times relevant hereto, and with regard to any RORO shipments, MTL had expertise in that matter and knew that if there was an issue with a particular automobile that

would prevent it from being shipped, MTL was charged with the responsibility to notify complainants immediately.

62. At all times relevant hereto, and with regard to any RORO shipments, MTL failed to notify complainants of any issues with titles for the subject automobiles which would prevent export of the cars. Rather, respondents allowed the cars to be delivered to a local port where they simply remained in storage without further action from MTL.

63. At all times relevant to the instant lawsuit, MTL accepted (by delivery from an auto auction warehouse) into its possession, custody, and control various automobiles already specifically designated by complainants for export overseas by RORO.

64. At all times relevant to the instant lawsuit, if said automobiles had issues preventing them from being exported by RORO (for example, missing keys, car not drivable, etc.) then MTL was under a duty to refuse to accept delivery of the automobiles (already specifically designated for export) from the auto auction warehouse.

65. At all times relevant to the instant lawsuit, if said automobiles had issues preventing them from being exported by RORO and the vehicles *were already at MTL's storage facility*, then respondents were under a duty to immediately notify complainants that there was an issue, and respondents were also obligated to immediately notify complainants that storage charges would continue to accrue until the issues were resolved and attempt to proceed by other methods (such as containerization of the cars in order to have them expeditiously exported).

66. With specific regard to complainants' obligation to pay monies to respondents for ocean freight, pick up service (inland freight), as well as storage charges for the subject automobiles, that obligation was memorialized in writing in two documents issued by MTL, to wit: the MTL Invoices and the MTL House Bills of Lading, which state that complainants'

obligation to pay for ocean freight and any extra charges (such as Inland Freight and storage charges) did not materialize until after the ocean liner carrying the automobiles had sailed and complainants had either ten (10) business days or two (2) weeks to pay their invoices after the date of sailing.

67. At all times relevant to the instant lawsuit, it was the common business practice and method of operation for Alla Solovyeva and Raya BAKHIREV and MTL to accept into their possession, custody, and control the automobiles already specifically designated by complainants for export overseas by RORO, regardless of whether said automobiles had issues preventing them from being exported by RORO (for example, missing keys, car not drivable, etc.).

68. Due to MTL's expertise in the operations of OFF and NVOCC, MTL has knowledge that non-running automobiles can be loaded onto an Ocean Liner via RORO, however, towing or a crane is needed if the automobile is not running and that extra charges are incurred if towing or a crane is needed.

69. Whereas other NVOCC's would either: (1) simply outright refuse to pick up the automobiles (already specifically designated for export) from the auto auction warehouse if they had issues preventing them from being exported by RORO; or (2) immediately inform the shipper that there were issues which could potentially cause substantial delay in exporting the automobiles, in all cases, MTL accepted the automobiles into their possession, custody, and control, and then Alla Solovyeva sent instructions to all employees of MTL wherein she restricted communication with complainants by phone and email, resulting in the subject automobiles sitting in storage *for months* without any notification whatsoever to complainants that storage charges were accumulating, even if complainants previously asked and Alla Solovyeva / MTL had agreed for the cars to be exported by RORO or via containerization.

70. At all times relevant to the instant lawsuit, MTL simply sat on their hands and failed in their duties to immediately inform the shipper that there were issues causing the accumulation of storage charges. - - This mode and method of practice was a money-making machine for Alla Solovyeva, Raya Bakhirev and MTL inasmuch as it allowed for significant amounts of storage charges to accrue for the vehicles.

71. To the extent that complainants herein had forwarded monies to MTL from time to time (when the exchange rate for Nigerian Naira to U.S. Dollar was favorable for complainants to do so), MTL essentially held those funds in deposit on behalf of complainants to be applied specifically against charges for ocean freight, Pick Up Service (Inland Freight) and shipment of specific vehicles as instructed by complainants.

72. To the extent that MTL was obligated to apply monies held in deposit on behalf of complainants after the ocean liner carrying the automobiles had sailed, the respondents' mode and method of practice allowed for the creation of a situation where complainants had a constant debt with respondents, thus providing respondents with a pretext for refusing to apply complainants' monies for shipment of vehicles recently delivered for export, instead always claiming that claimants owed monies for past due storage charges on vehicles previously received. Put simply, respondents failed in their duty to promptly ship automobiles recently received for export and then attempt, post-shipment, to collect any storage charges allegedly due and owing for past shipments. Had they done so, this would have prevented or mitigated the unnecessary accrual of storage charges.

73. Respondents instead applied monies towards alleged storage charges for past shipments, when said monies were in fact allocated for ocean freight for automobiles recently received for export. This provided respondents with a pretext to allow recently received cars to

sit in storage and accrue storage charges until alleged storage charges for past shipments were paid, in a never-ending cycle of delayed shipping, and unnecessary extra charges which could have been avoided by respondents.

74. Respondents' mode and method of practice in failing in their NVOCC and OFF duties to immediately inform the shipper that there were issues which could potentially cause substantial delay in exporting the automobiles (and that storage charges were accruing), allowed for respondents to continue to extort additional monies from complainants.

75. On April 19, 2017, Alla Solovyeva wrote to complainants via email as follows:

Dear Mr. Chinnedu, lets separate apples from oranges first,
Second ...my Company is the freight forwarding agent...The vehicles we
receive should be loaded within at least 90 days.

76. On April 19, 2017, complainant NNABUGWU CHINEDU ANDREW wrote, via email, on behalf of himself and complainants, to respondents, as follows:

First, Yes i know your company is a frieght forwarding agent...Thirdly,
thank you for also saying that I should have taken the vehicle on or before
the end of 90 days.

77. On May 5, 2017 Maria Kalashnikova <maria.k@mtlworld.com> wrote to complainants via email on behalf of MTL as follows:

CHINEDU,

1st container

2004 highlander...032541 **\$1600** warehouse storage + **\$384** inland delivery
(invoice#58518 attached)

2001 sienna...356554 **\$900** warehouse storage
(vehicle received 1/10/2017. 30 days free) + **\$250** inland delivery
(invoice #65569 attached)

2004 es330...037307 **\$550** warehouse storage
(vehicle received 2/14/2017. 30 days free) + **\$150** inland freight delivery
(invoice 66497 attached)

2009 corolla...053092 \$530 warehouse storage
(vehicle received 2/16/2017. 30 days free) + \$225 inland freight delivery
(invoice # 66500 attached)

Please confirm we can close these charges + OF so that we are on the same page

78. On May 05, 2017, complainant NNABUGWU CHINEDU ANDREW wrote, via email, on behalf of himself and complainants, to Raya Bakhirev and Maria Kalashnikova at MTL, as follows:

I have 90days Mark and not 30days please...I only offered the storage on the 2004 Highlander Because I have others at New Jersey...I have 90days...So, kindly remove the storage on other car's so that we can load this container please. Please remind Alla that that was what we agreed on...She send me a mail and said that to me...

79. On May 08, 2017, Alla Solovyeva wrote to complainants via email as follows:

Dear Mr. Chinnedu don't worry your cargo and container will be loaded.

80. MTL honored complainants' request and provide complainants with a Credit Memo for warehouse storage for all four above referenced automobiles which were located in MTL's Long Beach warehouse facility.

81. As explained above, the monies which complainants had forwarded to respondents from time to time were monies which respondents held in deposit on behalf of complainants. These monies were designated to be used to pay for ocean freight and for Inland Freight which was charged by respondents *after the ocean liner carrying the automobiles had sailed.*

82. With regard to the New Jersey vehicles described herein, complainants requested that all cars in New Jersey that could be ready to ship should go to RORO or be loaded into containers. However, after Alla Solovyeva agreed to export the cars and withdrew funds from the account where MTL held complainants' monies in deposit for ocean freight, she interfered with

complainants' request to export and prevented anyone at MTL from explaining the situation to the complainants. She did this deliberately in order to allow additional storage charges to accrue.

83. Pursuant to the parties' normal business custom and practice described above, respondents picked up the automobiles (already specifically designated for export) from the auto auction warehouse, accepted the automobiles for delivery to MTL's warehouse, loaded them (either by RORO or by container), and shipped them. It was only *after the shipment* that Alla Solovyeva *should have* issued the invoice (including all expenses) and bill of lading and informed complainants that there may not have been enough of complainants' monies held by MTL in deposit to cover charges for ocean freight. Her failure to do this was an obvious refusal to deal fairly and negotiate with complainants.

84. During this time period, MTL additionally generated as part of its business records various shipping documents, including MTL House Bills of Lading and invoices, which despite many requests from complainants that they be provided with copies of same, respondents deliberately refused to provide. Respondents did not even generate shipping invoices in their own system for a period of months after the automobiles had been exported by ocean liner.

85. On or about December 23, 2016, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$1,100.50 on account of complainants.

86. On December 23, 2016, Raya Bakhirev sent email with an attachment entitled "Payment Receipt" which indicated that the wire of December 23, 2016 was applied to:

Ocean Shipment # EO-43593; Booking # USCQG327855
Container # TCLU1579003
Amount: \$135.00

Ocean Shipment # EO-43597; Booking # USCQG328187
Container # UACU5948161
Amount: \$85.00

Ocean Shipment # EO-43605; Booking # USCQG328185
Container # UACU5129153
Amount: \$867.00

87. Per the December 23, 2016 email and attachment, all three (3) containers were paid in full, and the Amount Due was: \$0.00.

88. On or about February 16, 2017, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$4,000.00 on account of complainants.

89. On or about March 28, 2017, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$6,985.00 on account of complainants.

90. On or about May 16, 2017, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$8,085.00 on account of complainants.

91. On or about June 7, 2017, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$6,485.00 on account of complainants.

92. On or about June 12, 2017, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$6,485.00 on account of complainants.

93. On or about August 28, 2017, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$6,500.00 on account of complainants.

94. On or about October 6, 2017, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$2,420.00 on account of complainants.

95. On or about November 8, 2017, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$5,500.00 on account of complainants.

96. On or about January 22, 2018, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$1,375.00 on account of complainants.

97. On or about April 13, 2018, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$1,000.00 on account of complainants.

98. On or about April 18, 2018, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$1,350.00 on account of complainants.

99. On or about April 19, 2018, Raya Bakhirev confirmed receipt of a wire by MTL in the sum of \$6,350.00 on account of complainants.

100. In addition to the foregoing confirmations of receipt of wires by Raya Bakhirev on behalf of MTL on account of complainants, other wires in various sums were received by MTL and applied to account of complainants, to which complainants reserve the right to address on the issue of whether or not said monies were applied as directed by complainants.

101. On May 17, 2018, complainants requested, via counsel a copy of MTL's statement of account for Mr. Nnabugwu, specifically asking for:

...MTL's statement of account for Mr. Nnabugwu which indicates the manner in which his monies have been applied by MTL to shipments booked through MTL for the last year, together with the itemized invoices from MTL for these shipments...and...MTL's House Bills of Lading for the subject shipments...

102. Beginning on January 1, 2017 and continuing through April 19, 2018, MTL began, without permission, to apply complainants' monies held in deposit towards shipments which had already been delivered. During this time period, MTL also applied complainants' monies in deposit towards shipments which MTL ultimately never shipped to complainants.

103. Subsequent thereto, complainants reached an agreement with MTL and Alla Solovyeva that complainants would pay storage charges of up to \$300.00 per automobile still in MTL's possession in order to have them shipped immediately by MTL as previously agreed.

104. On October 11, 2017, Maria Kalashnikova wrote, via email, on behalf of MTL, to complainants, as follows:

Good morning Chinedu You have \$5954 available...

105. On October 12, 2017, Alla Solovyeva wrote to complainants via email as follows:

I want to remind to you about my last emails about storage fees in NY. I negotiated the storages from thousands of Dollars down to \$300/vehicle

106. On November 3, 2017, Denis Zenkovich of MTL wrote, via email on behalf of MTL using the email address "max.k@mtlworld.com", to complainants, as follows:

Sir, these two cars were in the warehouse since January, Alla instead of charging you thousands of dollars suggested for you the way out. I have to do my work very quickly in order to do everything in time for you sir, but you are not going to give this possibility to do that. I need your confirmation about \$300 per unit from your payment that it.

*Best regards, **Denis Zenkovich** Ro-Ro Department Management Sales
Marine Transport Logistics 63 New Hook Rd., Bayonne, NJ, 07002 Tel:
201-858-8600, Ext. 112 www.mtlworld.com*

107. During the relevant time period, Denis Zenkovich was the Ro-Ro Department Manager at MTL, and he answered and reported directly to Alla Solovyev between 2017 and 2018.

108. On November 3, 2017 complainants agreed to pay a flat fee for storage of \$300.00 per automobile still in MTL's possession to MTL, together with other charges which would be due after the containers were shipped by MTL.

109. On November 3, 2017 complainants wrote, via email to MTL, as follows:

Denis, I'm so proud of you.. What a good advice.. You can also pay it for me.. I will appreciate it.. Honestly you will go down my miracle book.. Now, you only advice on what you want to be and not or how I feel.. Now tell me,, why do I have to pay for storage first before paying for the total charges.. Honestly you are not to apply any money until I get confirmation... I know why I am saying this OK,, I will pay the \$300 but I will pay them together with the inland and other charges together.. Is that

OK now.. I will pay the \$300 but you will get it when are talking the other bills.. The containers first Thank you Chinedu

110. On January 30, 2018 complainants wrote, via email to MTL, as follows:

Hello Dennis. PLEASE I CONFIRM THAT THE 2006 AND 2007 TOYOTA 4RUNNER CAN GO AS CONSOLIDATION FROM HOUSTON @1100\$ AND SAVANNAH 900\$ NOT WITH INLAND FEE. I ALSO WILL LIKE TO BE THE AGENT TO CLEAR/BRING IT OUT OF CUSTOMS HERE IN LAGOS.

111. On January 31, 2018 complainants wrote, via email to MTL, as follows:

I mean that I confirm the Toyota 4runners to go with consolidation to Lagos at
2006 4 runner @ 1100\$ (ocean freight)
2007 4 runner @ 900\$ (ocean freight)
This is excluding inland transport bill

112. On February 1, 2018 complainants wrote, via email to MTL, as follows:

Please can I pay \$2500 for Cosco...I don't have money...And its 3 containers that I have to load now

113. On February 1, 2018, Alla Solovyeva wrote to complainants via email on behalf of herself and MTL as follows:

Unfortunately not because all rates were increased

114. On February 1, 2018, Alla Solovyeva confirmed with Complainants that the Ocean Freight Rate by container from NYC to TIN by COSCO Ocean Liner will be \$2700.00.

115. On February 1, 2018, Alla Solovyeva wrote to complainants via email on behalf of herself and MTL as follows:

\$2700/Cosco
\$3000/CMA
\$3100/MSC

116. On February 1, 2018, Maria Kalashnikova wrote to complainants via email on behalf of MTL as follows:

Dear Chinedu

Please note that your container loadings will be handled by Ilyas (he is in copy) – since I do not handle container loads any more.

We did receive your previous request for release of 2 containers that are paid in full – and we have requested those. We will send you confirmation of releases once they are available.

Best regards,

Maria Kalashnikova

117. On March 5, 2018, Alla Solovyeva wrote to complainants via email on behalf of herself and MTL as follows:

Again I agreed to accept \$300/car for the NJ inventory...**Alla**

118. At the time of the filing of this action, the inventory of automobiles owned by complainants which MTL picked up from the auto action and delivered to its respective warehouses for export pursuant to complainants' agreement with respondents are as follows:

MTL New Jersey Inventory of Complainants' Automobiles:

2007 Lexus RX350	VIN # 2T2HK31U47C022708
2001 Toyota Camry	VIN # 4T1BF22K51U966626
2004 Toyota Camry	VIN # 4T1BA32K34U502288
2002 Lexus ES 300	VIN # JTHBF30G725019803
2003 Lexus ES 300	VIN # JTHBF30G830101344
2002 Lexus RX 300	VIN # JTJHF10UX20257130

MTL Savannah Inventory of Complainants' Automobiles:

2007 Toyota 4Runner VIN # JTEZU14R670096538

MTL Los Angeles Inventory of Complainants' Automobiles:

1996 Toyota Avalon VIN # 4T1BF128XTU132140

MTL Houston Inventory of Complainants' Automobiles:

2006 Toyota 4Runner VIN # JTEZU14R560072942

119. For each of the above listed nine (9) automobiles, MTL continues to refuse to inform complainants as to the status of Automobiles.

120. For each of the above listed nine (9) automobiles, MTL withdrew complainants' monies held by MTL in deposit for purposes of paying for charges for ocean freight to ship said automobiles, and instead of applying said monies to promptly ship said automobiles, MTL instead applied said monies to inland freight and storage fees allegedly due for other cargo and refused to load and ship the above listed nine (9) automobiles to complainants. - - Essentially, MTL refused to ship automobiles recently received for export, held said cargo and caused storage charges to accrue for recently received cargo, and applied monies held by MTL in deposit by complainants towards alleged debt for storage for cargo which was received at an earlier time. This created a never-ending cycle of debt allegedly due and owing for storage charges which MTL failed in its duty to mitigate.

121. On March 9, 2018 NNABUGWU CHINEDU ANDREW wrote on behalf of Avers Logistics Limited to MTL and provided MTL with loading instructions for twelve of the subject automobiles as follows:

Please kindly find the loading instruction for 3 containers in new Jersey:

First container

1. 2003 Es 300 Vin 101344
2. 2002 RX 300 Vin 257130
3. 2003 RX 350 Vin 022708
4. 2008 RX 350 vin 080845

Storage (300/4) \$1200 + ocean (2700) + inland.

Second container

1. 2011 Venza Vin 041102
2. 2010 Venza Vin 030283
3. 2009 Venza Vin 017319
4. 2007 Avalon Vin 246968

Storage (300/4) \$1200 + \$2700 + inland.

Third container

1. 2008 Accord Vin 103906
2. 2004 Camry Vin 502288
3. 2002 ES 300 Vin 019803
4. 2006 GS 300 Vin 006993
5. 2001 Camry Vin 966626

Storage (1200) + 2700 + inland.

122. On April 24, 2018 MTL issued a Dock Receipt in contravention to complainants' instructions which contained inaccurate and/or false Bill of Lading information:

B/L Number EOR-010517 for 2010 Toyota Venza VIN: 4T3BK3BBXAU030283
Exporter: AVET EXOTO Inc., 601 Cornell Dr. Ut G7, Wilmington, DE 19801 USA
Tel: 201-878-2842
Consignee: Segzymoore Auto Lounge, 117 Awolowo Way, Ikeja 001234 NIGERIA
Att. OLUGBILE SEGUN
AES ITN: X20180412698663
Exporting Carrier: 'Morning Crystal/18MR01'
Type of move: RoRo, POL New York, POD Lagos

123. Pursuant to the formatting used by the AES filing system, the first eight (8) numbers of the AES ITN on the above referenced Dock Receipt and Bill of Lading Number EOR-010517 for 2010 Toyota Venza VIN: 4T3BK3BBXAU030283, indicates that that the AES ITN was created and filed on April 12, 2018.

124. Alla Solovyeva and MTL knowingly and willfully provided to the U.S. Department of Commerce and U.S. Customs and Border Protection false and fraudulent information regarding the identity of the owner/shipper and consignee for said shipment, and as a result, caused the U.S. Department of Commerce to issue an AES ITN Number based upon false and fraudulent information which was provided to the Ocean Liner.

125. The above referenced Toyota Venza VIN number ending in 0283 was purchased from IAAI auto action as a 'routed transaction'.

126. At no time did complainants ever identify or instruct respondents to list AVET EXOTO Inc. as Exporter for this shipment.

127. Complainants never had and currently have no business dealings with AVET EXOTO Inc.

128. At no time did complainants ever identify or instruct respondents to list Segzymoore Auto Lounge as Consignee for this shipment.

129. Complainants never had and currently have no business dealings with Segzymoore Auto Lounge.

130. On June 26, 2018, complainants received a Manifest from Exporting Carrier 'Morning Crystal/18MR01' POL Newark which contains information for the following three automobiles and shipments:

- A) BOL US001333767; 2006 Lexus GS 300 Vin. JTHBH965865006993
CONSIGNEE – FADEKE BABSON;
- B) BOL US001333768; 2007 Toyota Avalon Vin. 4T1BK36B57U245968
CONSIGNEE – FADEKE BABSON;
- C) BOL US00134773; 2010 Toyota Venza Vin. 4T3BK3BBXAU030283
CONSIGNEE – MARITIME SOLUTION

131. The above three (3) referenced automobiles were purchased from IAAI auto action as a 'routed transaction'.

132. On June 6, 2017 Raya Bakhriev withdrew complainants' monies held by MTL in deposit to cover charges for ocean freight and instead applied complainants' monies to inland freight Invoice #65921 in the amount of \$275.00 for the 2010 Toyota Venza Vin. 4T3BK3BBXAU030283.

133. On June 6, 2017 Raya Bakhriev withdrew complainants' monies held by MTL in deposit to cover charges for ocean freight and instead applied complainants' monies to inland freight Invoice # 65921 in the amount of \$200.00 for the 2007 Toyota Avalon Vin. 4T1BK36B57U245968.

134. Alla Solovyeva and MTL knowingly and willfully provided to the U.S. Department of Commerce and to US Customs and Border Protection false and fraudulent information regarding who is the owner/shipper and consignee of the above stated cargo, and received from the U.S. Department of Commerce an AES ITN Number based on respondents' false and fraudulent information, which AES ITN Number was then provided by respondents to the Ocean Liner.

135. At no time did complainants ever identify or instruct respondents to list FADEKE BABSON or MARITIME SOLUTION as Consignee for these shipments.

136. Complainants never had and currently have no business dealings with neither FADEKE BABSON nor MARITIME SOLUTION.

137. On March 9, 2018, Avers Logistics Ltd. instructed respondents to load and ship by container the above three (3) referenced automobiles to Avers Logistics Ltd.

138. In violation of the instructions of Avers Logistics Ltd., respondents instead loaded the automobiles by RoRo and shipped them to someone that complainants did not know, and without permission.

139. MTL never provided a House Bill of Lading for the above three (3) referenced automobiles and Avers Logistics Ltd. never received the automobiles.

140. On June 21, 2018, Ilyas Jumashev from MTL sent an email on behalf of MTL to Avers Logistics Ltd. with subject: “038CHI1556516 / TCNU2645133 / NY-TINCAN / ETA: 06/21” which reads as follows:

Good afternoon Mr. Chinedu,

Please be advised that container# TCNU2645133 is arriving today (06/21) to Tincan, Lagos.

Kindly see attachment to see details.

141. In the attachment to the above referenced email from MTL of June 21, 2018, MTL provided MSC Bill of Lading No.: MSCUWK903927, dated May 22, 2018, which contains the following information:

BOOKING REF. 038CHI1556516
POL NEW YORK
POD TINCAN/LAGOS, NIGERIA
Container No. TCNU2645133
AES ITN: 20180411653898
Shipper: Marine Transport Logistics Inc., 63 New Hook Road, Bayonne NJ 07002
REF# EO – 50566
Consignee: ALJ Forwarders Services Limited, 18 Payne Crescent, Apapa Nigeria
Notify Parties: Segzymoore Auto Lounge, 117 Awolowo Way, Ikeja, Lagos
001234 Nigeria

142. Pursuant to the formatting used by the AES filing system, the first eight (8) numbers of the AES ITN on the above referenced MSC Bill of Lading No.: MSCUWK903927 indicate that that the AES ITN was created and filed on April 11, 2018.

143. In the attachment to the above referenced email from MTL of June 21, 2018, MTL also provided a Dock Receipt, dated April 10, 2018, which contains the following information:

Document Number : 038CHI1556516
B/L Number : HBOL41677
Export Reference MBL: EO – 50566
POL NEW YORK, POD TINCAN/LAGOS
Container No. TCNU2645133
AES ITN: 20180411653898
Exporter: CJ Deluz Nigeria Limited, 166 Lawanson Road, Surulere, Lagos. Nigeria
Consignee: Nnabugwu Chinedu Andrew, 63 New Hook Road, Bayonne NJ 07002
NOTIFY PARTIES: ALJ Forwarders Services Limited
18 Payne Crescent Apapa Nigeria

144. Container No. TCNU2645133 contained five (5) automobiles owned by Complainants, including the following:

2010 LEXUS RX 350 VIN. 2T2BK1BA8AC039422
2009 TOYOTA VENZA VIN. 4T3ZK11A79U017319
2011 TOYOTA VENZA VIN. 4T3ZK3BB2BU041102
2008 HONDA ACCORD VIN. 1HGCP26728A103906
2008 LEXUS RX 350 VIN. 2T2HK31U58C080845

145. The aforementioned automobiles were purchased from IAAI auto action as a ‘routed transaction’.

146. At no time did complainants ever identify or instruct respondents to list ALJ Forwarders Services Limited as Consignee or Notify Party for this shipment.

147. Complainants never had and currently have no business dealings with ALJ Forwarders Services Limited.

148. At no time did complainants ever identify or instruct respondents to list Segzymoore Auto Lounge as Notify Party for this shipment.

149. At no time did complainants ever provide shipping instructions to respondents which included the names of ALJ Forwarders Services Limited and Segzymoore Auto Lounge.

150. Complainants never had and currently have no business dealings with Segzymoore Auto Lounge.

151. CJ Deluz Nigeria Limited should not have been listed by MTL as the Exporter of the aforementioned cars and MTL's doing so was improper in that this shipping transaction was a routed transaction.

152. Nnabugwu Chinedu Andrew, 63 New Hook Road, Bayonne NJ 07002 should not have been listed by MTL as the Consignee of the aforementioned cars and MTL's doing so was improper in that Nnabugwu Chinedu Andrew is not located in New Jersey and resides abroad.

153. On June 22, 2018, counsel for respondents, Garry Pogil, Esq. emailed counsel for complainants with the Subject: Re: 038CHI1556516 / TCNU2645133 / NY-TINCAN / ETA: 06/21. The body of the email reads in relevant part as follows:

I made sure that these cars would be released to your client and not to somebody else, and it's my understanding that your client can pick them up without making any additional payment with respect to this container.

154. On June 25, 2018, Alla Solovyeva wrote to complainants and to Mr. Pogil via email on behalf of herself and MTL as follows:

'...Garry please advise the customer to pick up vehicles before the container will start collecting charges at the destination'

155. On June 27, 2018, counsel for respondents, Garry Pogil, Esq. emailed counsel for complainants as follows:

Please see attached the house BOL that I received from MTL...

156. The MTL House Bill of Lading, dated April 10, 2018 and attached to Mr. Pogil's email referenced above contains the following information:

Document Number: 038CHI1556516
B/L Number: HBOL41677
Export Reference MBL: EO – 50566

POL NEW YORK, POD TINCAN/LAGOS
Container No. TCNU2645133
ETD MAY/17/18 and ETA JUN/21/18
AES ITN: 20180411653898
Exporter: CJ Deluz Nigeria Limited, 166 Lawanson Road, Surulere, Lagos. Nigeria
Consignee: Nnabugwu Chinedu Andrew, 63 New Hook Road, Bayonne NJ 07002
NOTIFY PARTIES: ALJ FORWARDERS SERVICES LIMITED, 18 PAYNE
CRESCENT APAPA NIGERIA

157. Container No. TCNU2645133 contained five (5) automobiles owned by Complainants as set forth above.

158. The aforementioned automobiles were purchased from IAAI auto action as a 'routed transaction'.

159. At no time did complainants ever identify or instruct respondents to list ALJ Forwarders Services Limited Notify Party for this shipment.

160. Complainants never had and currently have no business dealings with ALJ Forwarders Services Limited.

161. At no time did complainants ever provide shipping instructions to respondents which included the name of ALJ Forwarders Services Limited.

162. CJ Deluz Nigeria Limited should not have been listed by MTL as the Exporter of the aforementioned cars and MTL's doing so was improper in that this shipping transaction was a routed transaction.

163. Nnabugwu Chinedu Andrew, 63 New Hook Road, Bayonne NJ 07002 should not have been listed by MTL as the Consignee of the aforementioned cars and MTL's doing so was improper in that Nnabugwu Chinedu Andrew is not located in New Jersey and resides abroad.

164. Alla Solovyeva and MTL knowingly and willfully provided to the U.S. Department of Commerce and to US Customs and Border Protection false and fraudulent information regarding who is the owner/shipper and consignee of the above stated cargo, and

received from the U.S. Department of Commerce an AES ITN Number based on respondents' false and fraudulent information, which AES ITN Number was then provided by respondents to the MSC Ocean Liner.

165. The language at the bottom of the above referenced MTL House Bill of Lading reads as follows:

Payment must be received no later than 2 weeks after sailing date. Past due invoices are subject to mandatory Late Fee (\$50) and Documentation Fee (\$50)

166. On June 28, 2018, Ilyas Jumashev from MTL wrote, via email to complainants on behalf of MTL, with the Subject: 038CHI1556516 / TCNU2645133 / NY-TINCAN, and attached an invoice (No.: 83489) to said email, dated June 1, 2018, together with an MTL House Bill of Lading (No.: 41677).

167. The aforementioned Invoice No.: 83489 contains the following information:

Reference # HBOL 41677
Booking # 038CHI1556516
Container # TCNU2645133
Bill to: Nnabugwu Chinedu Andrew, 63 New Hook Road, Bayonne NJ 07002 USA
TERMS AND CONDITIONS: This invoice contains cash outlays advanced for your account. Payment must be received no later than 10 business days after sailing date...

168. Nnabugwu Chinedu Andrew, 63 New Hook Road, Bayonne NJ 07002 should not have been listed by MTL as the "Bill to" party on the aforementioned invoice and MTL's doing so was improper in that Nnabugwu Chinedu Andrew is not located in New Jersey and resides abroad.

169. The aforementioned Invoice No.: 83489 also contains line items for the following charges:

Ocean Freight Service Rate (5 cars/40HC/MSC) \$3000.00

Cutting and Dismantling Quantity 2, Price 500.00, Amount \$1000.00

170. At no time did complaints ever request respondents to cut and dismantle any of the automobiles in this shipment and as of the time of this writing, respondents have refused to identify which specific automobiles were cut apart and dismantled.

171. Upon information and belief and based upon the information set forth in the above referenced Invoice # 83489, the two cars referenced in this container were destroyed by MTL.

172. MTL is releasing this container to an unknown third-party, has failed to change the manifest for this container, and has refused to provide a release to complainants.

THE INDIVIDUAL VEHICLES FROM WHICH THIS ACTION ARISES

All of complainants' automobiles which are the subject of this action and upon which complainants' damages are based are itemized in the attached table. As set forth in the attached table, complainants' damages calculation include the value of the automobiles, together with consequential damages arising out of the lost sale of the cars due to the actions of respondents which caused complainants to be unable to fulfill the contract for sale of the cars between complainants and their customers. The value of the automobiles is calculated to be the sum of \$72,852.00.

VI. Violations of the Shipping Act

A. Respondents violated 46 U.S.C. §41102(c) by:

- i. failing to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property;
- ii. failing to provide Complainants and any other necessary parties with: (a) proper and lawful documents of ownership; (b) shipping invoices and house bills of lading; (c) the terms and conditions of transport; and (d) statements of account;

- iii. failing to deal in good faith;
- iv. misapplying complainants' monies held by respondents in deposit for ocean freight, and instead applying said monies to storage charges for unrelated shipments which resulted in delayed shipment of recently received cargo and accrual of additional storage charges while recently received cargo unnecessarily remained in storage;
- v. maintaining a mode and method of practice which caused the unnecessary accrual of storage charges for automobiles recently received for export;
- vi. failing in their duties to promptly ship cargo recently received for export and minimize the unnecessary accrual of storage charges.

B. Respondents violated 46 U.S.C. §§ 41104(3), and 41104(10) by: (i) retaliating against Complainants by resorting to unfair and unjustly discriminatory methods; and (ii) by unreasonably refusing to deal or negotiate.

C. Respondents additionally violated 46 U.S.C. 41102(c) by releasing complainants' cargo to third parties, and by detaining, misdelivering said cargo, and in one instance, destroying two automobiles and cutting them in half.

D. Respondents violated 46 U.S.C. §40901(a) by:

-Providing freight forwarder services without proper licenses from the Commission; and

-Knowingly and willfully cutting in half and dismantling 2 automobiles belonging to complainants and shipping them in a container;

E. Respondents violated 46 U.S.C. §§ 41102(6)(A)(ii) by: Assuming responsibility for the safe transportation of the cargo from the point of receipt to the point of destination and then withholding documentation needed to secure the release of cargo; and

-Failing to provide notice regarding the whereabouts of other cars.

F. Respondents violated 46 U.S.C. §§41102(b) by:

-Failing and refusing to adhere to the shipping agreement between complainants and respondents;

-Refusing to ship complainants' automobiles until the storage fees were paid which resulted in accrual of additional storage charges;

-Refusing to ship complainants' automobiles until the inland freight fees were paid which resulted in accrual of additional storage charges;

-Knowingly and willfully refusing to follow instructions from complainants as to how to apply money held by respondents in deposit on behalf of complainants;

-Knowingly and willfully providing defective MTL Bills of Lading as set forth in detail above (e.g. identifying complainants in the 'consignee' box of the BOL with an address at MTL's USA place of business rather than Lagos, Nigeria, which is where complainants were located); and

-Knowingly and willfully misdelivering Complainants' cargo.

G. Complainants ask the Commission to designate the Bureau of Enforcement as a party to this proceeding for a number of reasons, including but not limited to:

A. The egregious nature of respondents' activity by defrauding the United States Government shipping regimes including the United States Department of Commerce and U.S. Customs and Border Protection by providing false statements under oath and penalty of perjury through the Automated Export System known as AES. As set forth herein, respondents knowingly and willfully provided to the U.S. Department of Commerce and U.S. Customs and Border Protection false and fraudulent information regarding who is the owner/shipper and consignee of the cargo described herein; receiving from the U.S. Department of Commerce an AES ITN Number based upon the false and fraudulent information; and providing this AES ITN number to Ocean Liners. As admitted by respondent Alla Solovyeva, the providing of false and fraudulent information to the U.S. Department of Commerce and U.S. Customs and Border Protection via MTL Bills of Lading must result in civil and criminal penalties under U.S. laws on exportation (13 U.S.C. Sec.30; 22 U.S.C. Sec. 401; 18 U.S.C. Sec. 1001; and 50 U.S.C. App. 2410).

B. MTL's demonstrated pattern and established history of repeated violations of the Shipping Act warrant BOE intervention here. For example, as set forth in the matter of Best Way USA, Inc. v. Marine Transport Logistics, Informal Docket No.: 1901(I) (see, e.g., Decision of Settlement Officer De La Cruz dated January 24, 2012), respondent MTL was held to have engaged in the same conduct complained of herein and found to have violated the Shipping Act. Respondent MTL was additionally placed on notice that the very same activity it engaged in here was violative of the Shipping Act in the matter of Samir Abusetta d/b/a Sammy's Auto Sales v. JAX Auto Shipping, Inc. and Marine Transport Logistics, Inc. Informal Docket No.: 1932(I) (see, e.g.,

Decision by the Commission dated October 18, 2016). MTL is also a respondent in two additional proceedings before the Commission in which it is alleged that MTL has engaged in similar conduct complained of herein, to wit: MAVL Capital Inc., et al, v. Marine Transport Logistics, et al. (FMC Docket No.: 16-16); and Crocus Investments, LLC et al. v. Marine Transport Logistics, Inc. et al. (FMC Docket No.: 15-04).

VII. Injury to Complainants

A. As a result of respondents' aforementioned violations of the Shipping Act of 1984, the complainants have sustained and continue to sustain injuries and damages as follows:

- Direct damages in the amount of \$172,852.00 plus additional consequential damages for sums arising out of lost contracts, plus interest, and monies which respondents held in deposit for ocean freight but which were unnecessarily applied to storage and inland freight charges due to respondents' failure to promptly ship the cargo. See Appendix "A". Additional documents related to complainants' damages are annexed hereto as Appendix "B"; and
- Attorneys Fees.

The full extent of damages can only be determined after obtaining discovery in this matter, and after final calculation of interest due and owing to Complainants on this sum and calculation of the legal fees incurred by complainants due to respondents' violations of the Shipping Act.

VIII. Prayer for Relief

- A. Statement regarding ADR procedures: Alternative dispute resolution procedures were attempted prior to filing the Complaint and Complainants did consult with a Commission Dispute Resolution Specialist about utilizing alternative dispute resolution. - - Specifically, on May 17, 2018 the undersigned counsel received an e-mail from Zoraya De La Cruz, Office of Consumer Affairs and Dispute Resolution Services with Subject Line: Case No. 180171, wherein she advised as follows: "...Mr. Garry Pogil represented MTL, but you will need to confirm with the company if that is still their counsel...". Settlement Officer De La Cruz advised that the Commission then closed complainants' grievance at that time as the parties would not come to a compromise.

WHEREFORE, Complainants pray that: (1) respondents be required to answer the charges herein; (2) that after due hearing, an order be made commanding said respondents to pay to Complainants by way of reparations for the unlawful conduct hereinabove described, the sums described herein, with interest and attorney's fees, costs and expenses, or such other sum as the Commission may determine to be proper as an award of reparation; (3) that the Commission issue an Order holding that the respondents Alla Solovyeva and Raya Bakhriev individually, and Marine Transport Logistics Inc. violated the Shipping Act of 1984; and (4) that the Commission issue such other and further order or orders as the Commission determines to be just and proper. Complainants request a hearing on this matter, and further request that the hearing be held in Washington, D.C.

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.,
Lead Attorney for Complainants
David Treyster, Esq.,
Attorney for Complainants
P.O. Box 245599
Brooklyn, NY 11224
Tel: 201-956-7071
Fax: 347-572-0439
marcus.nussbaum@gmail.com

Dated: July 14, 2020

VERIFICATION

Nnabugwu Chinedu Andrew declares and states that he is a Complainant in this proceeding, and that the foregoing annexed VERIFIED COMPLAINT is true to the best of his information and belief, and that the grounds to his belief as to those matters therein not stated upon personal knowledge, is based upon information which has otherwise been provided to Complainant and which Complainant believes to be true.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 14, 2020

A handwritten signature in black ink, appearing to be 'Nnabugwu Chinedu Andrew', is written over a horizontal line. The signature is stylized and includes a large 'X' mark.

Nnabugwu Chinedu Andrew

APPENDIX “A”

Title	WHR Shipper	Vehicle Year	Vehicle Make	Vehicle Model	VIN	RECEIPT PAGE ON IAAI	SELLING VALUE \$
09/21/2017	NNABUGWU CHINEDU ANDREW	2007	Toyota	4Runner	JTEZU14R670096538	31	11,429
10/02/2017	NNABUGWU CHINEDU ANDREW	2010	Lexus	RX 350	2T2BK1BA8AC039422	17	18,571
09/01/2017	NNABUGWU CHINEDU ANDREW	2009	Toyota	Venza	4T3ZK11A79U017319	24	17,140
08/07/2017	NNABUGWU CHINEDU ANDREW	2006	Lexus	GS 300	JTHBH96S865006993	30	9,143
06/10/2017	NNABUGWU CHINEDU ANDREW	2008	Lexus	RX 350	2T2HK31U58C080845	16	12,857
06/09/2017	NNABUGWU CHINEDU ANDREW	2007	Lexus	RX 350	2T2HK31U47C022708	18	12,000
05/10/2017	NNABUGWU CHINEDU ANDREW	2001	Toyota	Camry	4T1BF22K51U966626	19	3,429
05/03/2017	NNABUGWU CHINEDU ANDREW	2007	Toyota	Avalon	4T1BK36B57U245968	34	9,143
01/27/2017	NNABUGWU CHINEDU ANDREW	2011	Toyota	Venza	4T3ZK3BB2BU041102	33	17,142
01/25/2017	NNABUGWU CHINEDU ANDREW	2004	Toyota	Camry	4T1BA32K34U502288	37	5,714
01/25/2017	NNABUGWU CHINEDU ANDREW	2002	Lexus	ES 300	JTHBF30G725019803		5,714
01/25/2017	NNABUGWU CHINEDU ANDREW	2008	Honda	Accord	1HGCP26728A103906	37	7,714
01/24/2017	NNABUGWU CHINEDU ANDREW	2010	Toyota	Venza	4T3BK3BBXAU030283	35	19,142
01/18/2017	NNABUGWU CHINEDU ANDREW	2003	Lexus	ES 300	JTHBF30G830101344		5,714
01/18/2017	NNABUGWU CHINEDU ANDREW	2002	Lexus	RX 300	JTJHF10UX20257130		7,142
03/13/2017	NNABUGWU CHINEDU ANDREW	1996	Toyota	Avalon	4T1BF12BXTU132140	NILL	NILL
09/20/2017	NNABUGWU CHINEDU ANDREW	2006	Toyota	4Runner	JTEZU14R560072942	14	10,857
							\$ 172,852

APPENDIX “B”



Marine Transport Logistic, Inc.

FMC: 018709N

DOCK RECEIPT

2. EXPORTER (Principal or seller-licensee and address including ZIP Code) CJ DELUZ NIGERIA LIMITED 166 LAWANSON ROAD Surulere, LAGOS. NIGERIA ZIP CODE		5. DOCUMENT NUMBER 038CHI1556516		5a. B/L NUMBER HBOL41677	
3. CONSIGNEE TO NNABUGWU CHINEDU ANDREW 63 New Hook Rd, Tel: 08032733086, Bayonne, NJ 07002. USA		7. FORWARDING AGENT (Name and address - references) Marine Transport Logistic Inc 63 New Hook Rd, Bayonne NJ 07002			
4. NOTIFY PARTY / INTERMEDIATE CONSIGNEE (Name and address) ALJ FORWARDERS SERVICES LIMITED 18 PAYNE CRESCENT, Tel: 234 806 311 2482, APAPA. NIGERIA		8. POINT (STATE) OF ORIGIN OR FTZ NUMBER			
12. PRE-CARRIAGE BY		13. PLACE OF RECPT BY PRE-CARRIER		9. DOMESTIC ROUTING/EXPORT INSTRUCTIONS	
14. EXPORTING CARRIER MSC SPAIN / NU818E		15. PORT OF LOADNG/EXPORT New York		10. LOADING PIER/TERMINAL	
16. FOREIGN PORT OF UNLOADING (Vessel and air only) Tincan/Lagos		17. PLACE OF DELIVERY BY ON-CARRIER		11. TYPE OF MOVE Vessel, Containerized	
11a. CONTAINERIZED (Vessel only) ☒ Yes ☐ No					
MARKS AND NUMBERS (18)	NUMBER OF PACKAGES (19)	DESCRIPTION OF COMMODITIES (20)		GROSS WEIGHT (Kilos) (21)	MEASUREMENT (22)
CNT: TCNU2645133 SEAL: 6151319 WR 147122	1 VEH	40 Ft. High Cube		8,957.54 Kg	2,566.36 ft ³
WR 135634	1 VEH	2010 LEXUS RX 350 BASE VIN:2T2BK1BA8AC039422		2,045.70 Kg	534.65 ft ³
WR 135571	1 VEH	2011 TOYOTA VENZA BASE VIN:4T3ZK3BB2BU041102		1,755.40 Kg	520.08 ft ³
WR 145862	1 VEH	2008 HONDA ACCORD EX VIN:1HGCP26728A103906		1,545.84 Kg	474.45 ft ³
WR 141946	1 VEH	2009 TOYOTA VENZA BASE VIN:4T3ZK11A79U017319		1,755.40 Kg	520.08 ft ³
		2008 LEXUS RX 350 BASE VIN:2T2HK31U58C080845		1,855.19 Kg	517.10 ft ³
		AES ITN:X20180411653898			
Carrier has a policy payment, solicitation, or receipt of any rebate, directly or indirectly, which would be unlawful under the United States Shipping Act: 1984 as amended. DECLARED VALUE READ CLAUSE 29 HEREOF CONCERNING EXTRA FREIGHT AND CARRIER'S LIMITATIONS OF LIABILITY.					

DELIVERED BY:

LIGHTER
TRUCK

ARRIVED DATE _____ TIME _____

UNLOADED DATE _____ TIME _____

CHECKED BY _____

PLACED IN SHIP ON DOCK LOCATION _____
CX0002

RECEIVED THE ABOVE DESCRIBED GOODS OR PACKAGES SUBJECT TO ALL THE TERMS OF THE UNDERSIGNED'S REGULAR FORM OF DOCK RECEIPT AND BILL OF LADING WHICH SHALL CONSTITUTE THE CONTRACT UNDER WHICH THE GOODS ARE RECEIVED, COPIES OF WHICH ARE AVAILABLE FROM THE CARRIER ON REQUEST AND MAY BE INSPECTED AT ANY OF ITS OFFICES.

Important information regarding U.S. customs inspection procedures:
Any and all shipments arriving to or departing from the USA are subject to and can be inspected by the U.S. customs and border protection. U.S. customs randomly pulls containers for inspection at the port for security & safety reasons. The inspection can be done either at the terminal by x-ray, open visual inspection, or by transferring the container to a bonded warehouse and doing a total de-vanning of the container for inspection of contents. All charges incurred from the ocean line and/or the bonded warehouse as a result of the U.S. customs inspection is the total responsibility of the shipper. If these charges are not paid within the given time frame, then the shipper can incur additional storage fees and penalties, with the possibility of their cargo being seized. Marine Transport Logistics is not responsible for any of the charges resulting from U.S. customs exams because Marine Transport Logistics is acting on behalf of the shipper, and they do not hold title or ownership of the shipment.

BY _____
RECEIVING CLERK

DATE Apr/10/2018

Manifest MORNING CRYSTAL 18MR01

POL BL SITIPRA CONSIGNEE NOTIFI MARG MAKU CATABS25

1	Newark	US00133767	American Export Lines	FADEKE BABSON	Same As Consignee	2006	LEXUS GS 300	JTHBH96S865006993
2	Newark	US00133768	American Export Lines	FADEKE BABSON	Same As Consignee	2007	TOYOTA AVALON	4T1BK36B57U245968
3	Newark	US00134773	Marine Transport Logistics Inc.	OLUGBILE SEGUN	Maritime solution	2010	TOYOTA VENZA	4T3BK3BBXAU030283



2. EXPORTER (Principal or seller-licensee and address including ZIP Code)

CJ DELUZ NIGERIA LIMITED
166 LAWANSON ROAD
Surulere, LAGOS. NIGERIA

ZIP CODE

5. DOCUMENT NUMBER

038CHI1556516

5a. B/L NUMBER

HBOL41677

6. EXPORT REFERENCES

MBL: EO-50566

3. CONSIGNED TO

NNABUGWU CHINEDU ANDREW
63 New Hook Rd, Tel: 08032733086,
Bayonne, NJ 07002. USA

7. FORWARDING AGENT (Name and address - references)

8. POINT (STATE) OF ORIGIN OR FTZ NUMBER

4. NOTIFY PARTY/INTERMEDIATE CONSIGNEE (Name and address)

ALJ FORWARDERS SERVICES LIMITED
18 PAYNE CRESCENT, Tel: 234 806 311 2482,
APAPA. NIGERIA

9. DOMESTIC ROUTING/EXPORT INSTRUCTIONS

12. PRE-CARRIAGE BY

13. PLACE OF RECEIPT BY PRE-CARRIER

ETD May/17/18

ETA Jun/21/18

14. EXPORTING CARRIER

MSC SPAIN / NU818E

15. PORT OF LOADING/EXPORT

New York

10. LOADING PIER/TERMINAL

16. FOREIGN PORT OF UNLOADING (Vessel and air only)

Tincan/Lagos

17. PLACE OF DELIVERY BY ON-CARRIER

11. TYPE OF MOVE

Vessel, Containerized

11a. CONTAINERIZED (Vessel only)

Yes ☒ No ☐

MARKS AND NUMBERS

(18)

NUMBER
OF PACKAGES
(19)

DESCRIPTION OF COMMODITIES in Schedule B detail

(20)

GROSS WEIGHT
(Kilos)
(21)MEASUREMENT
(22)

CNT: TCNU2645133
SEAL: 6151319
WR 147122

1 VEH

40 Ft. High Cube

8,957.54 Kg

2,566.36 ft³

WR 135634

1 VEH

2010 LEXUS RX 350 BASE
VIN:2T2BK1BA8AC039422
2011 TOYOTA VENZA BASE
VIN:4T3ZK3BB2BU041102

2,045.70 Kg

534.65 ft³

WR 135571

1 VEH

2008 HONDA ACCORD EX
VIN:1HGCP26728A103906

1,755.40 Kg

520.08 ft³

WR 145862

1 VEH

2009 TOYOTA VENZA BASE
VIN:4T3ZK11A79U017319

1,545.84 Kg

474.45 ft³

WR 141946

1 VEH

2008 LEXUS RX 350 BASE
VIN:2T2HK31U58C080845

1,755.40 Kg

520.08 ft³

1,855.19 Kg

517.10 ft³

AES ITN:X20180411653898

5

8,957.54 Kg

2,566.36 ft³

Carrier has a policy against payment, solicitation, or receipt of any rebate, directly or indirectly, which would be unlawful under the United States Shipping Act, 1984 as amended.

DECLARED VALUE

READ CLAUSE 29 HEREOF CONCERNING EXTRA FREIGHT AND CARRIER'S LIMITATION OF LIABILITY.

FREIGHT RATES, CHARGES, WEIGHTS AND/OR MEASUREMENTS

SUBJECT TO CORRECTION

PREPAID

COLLECT

RECEIVED, by the Carrier as described on the reverse hereof (hereinafter called the Carrier) from the above named shipper, the goods, or package said to contain goods, hereinabove described, in apparent good order and condition unless otherwise noted hereon, to be held and transported subject to all written, typed printed or stamped provisions of this bill of lading, on this and on the reverse side hereof, to the port or place of discharge named above or so near thereunto as the ship can always safely get and leave always afloat at the stages and conditions of water and weather and there to be delivered or transhipped on payment of the charges

April

10,

2018

By

Marine Transport Logistics

SIGNED ON BEHALF OF THE CARRIER

B/L No.

HBOL41677

CX0004

GRAND TOTAL

Payment must be received no later than 2 weeks after sailing date. Past Due Invoices are subject to mandatory Late Fee (\$50) and Documentation Fee (\$50)



Go to the port with George.

DOCK RECEIPT

2. EXPORTER (Principal or seller-licensee and address including ZIP Code) AVET EXOTO INC 601 Cornell Dr Ut G7, Tel: 2018782842, Wilmington, DE 19801. USA		5. DOCUMENT NUMBER SAL-127438		5a. B/L NUMBER EOR-010517	
ZIP CODE		6. EXPORT REFERENCES EOR-010517			
3. CONSIGNEE TO SEGZYMOORE AUTO LOUNGE 117 AWOLOWO WAY, Tel: +23408027192424, IKEJA 001234. NIGERIA <i>NOAH</i> <i>Segun OLUGBOLA</i>		7. FORWARDING AGENT (Name and address - references) Marine Transport Logistic Inc 63 Hook Road, Bayonne, NJ 07002			
4. NOTIFY PARTY / INTERMEDIATE CONSIGNEE (Name and address)		8. POINT (STATE) OF ORIGIN OR FTZ NUMBER			
12. PRE-CARRIAGE BY		9. DOMESTIC ROUTING/EXPORT INSTRUCTIONS			
13. PLACE OF RECEIPT BY PRE-CARRIER		ETD 04/30/2018	ETA 05/17/2018	CUT OFF DATE 04/24/2018	
14. EXPORTING CARRIER MORNING CRYSTAL / 18MR01		15. PORT OF LOADING/EXPORT New York		10. LOADING PIER/TERMINAL	
16. FOREIGN PORT OF UNLOADING (Vessel and air only) Lagos		17. PLACE OF DELIVERY BY ON-CARRIER Lagos		11. TYPE OF MOVE RoRo	
11a. CONTAINERIZED (Vessel only) ☐ Yes ☒ No					
MARKS AND NUMBERS (18)	NUMBER OF PACKAGES (19)	DESCRIPTION OF COMMODITIES (20) <i>In Schedule B detail</i>		GROSS WEIGHT (Kilos) (21)	MEASUREMENT (22)
WR 135570	1 VEH	2010 TOYOTA VENZA BASE VIN:4T3BK3BBXAU030283 AES ITN:X20180412698663		1,834.78 Kg "4,045.00 Lb"	520.08 ft³ "5,413.84 Vib"

CX0005



Marine Transport Logistic, Inc.

63 New Hook Rd
Bayonne, NJ. 07002
USA

201-858-8600

Invoice

Reference #

HBOL41677

Date

Due Date

Number

Jun/01/2018

Jun/08/2018

83489

Bill to

NNABUGWU CHINEDU ANDREW

63 New Hook Rd
Bayonne, NJ 07002.
USA

Shipper:

CJ DELUZ NIGERIA LIMITED

Consignee:

NNABUGWU CHINEDU ANDREW

Origin/Destination:

NYC / TIN

Entry Date:

Apr/10/2018

Carrier:

MEDITERRANEAN SHIPPING COM

AWB / BL No.:

EO-50566

House Way Bill:

HBOL41677

Pieces / Weight:

5 / 19,748.00 lb

Booking Number:

038CHI1556516

Container #:

TCNU2645133

Master Shipment Name:

EO-50566

Year

Make

Model

VIN

Notes

2010	Lexus	RX 350	2T2BK1BA8AC039422
2011	Toyota	Venza	4T3ZK3BB2BU041102
2008	LEXUS	RX 350 BASE	2T2HK31U58C080845
2008	Honda	Accord	1HGCP26728A103906
2009	TOYOTA	VENZA BASE	4T3ZK11A79U017319

Description of Charges

Quantity

Price

Amount

Ocean Freight Service Rate (5 cars/40HC/MSC)

1.00

3,000.00

3,000.00

Chassis Charge

1.00

25.00

25.00

Cutting and Dismantling

2.00

500.00

1,000.00

TERMS AND CONDITIONS:

This invoice contains cash outlays advanced for your account. Payments must be received no later than 10 business days after sailing date. Past due invoices are subject to mandatory late payment fee of \$250 plus the cost of collection. Please remit promptly. All sales are final. No refunds. Marine Transport Logistics credit only.

USD

4,025.00

PLEASE PAY THIS AMOUNT

RETURN PORTION

To Ensure Proper Credit, Please Return This Portion With Payment

Marine Transport Logistics

63 New Hook Rd

Bayonne, NJ 07002

Phone 201-858-8600 / Fax: 201 858-8607

www.mtlworld.com

Reference #: HBOL41677

Invoice #.....: 83489

Invoice Date: Jun/01/2018

Container Number: TCNU2645133

Origin: NYC

Destination: TIN

Amount: USD 4,025.00

Year	Make	Model	VIN
2010	Lexus	RX 350	2T2BK1BA8AC039422
2011	Toyota	Venza	4T3ZK3BB2BU041102
2008	LEXUS	RX 350 BASE	2T2HK31U58C080845
2008	Honda	Accord	1HGCP26728A103906
2009	TOYOTA	VENZA BASE	4T3ZK11A79U017319

CX0006

By continuing to use the website, you will be agreeing to our [Privacy Policy \(/usa/privacy-policy/\)](/usa/privacy-policy/), [Terms & Conditions \(/usa/terms-conditions/\)](/usa/terms-conditions/) and [Use of cookies \(/usa/cookie-policy/\)](/usa/cookie-policy/).

TRACK A SHIPMENT

Finding your freight, fast.

Clear Search

Container: TCNU2645133

Type	Final POD
40' HIGH CUBE	TINCAN/LAGOS, NG
Shipped to	Price calculation date*
TINCAN/LAGOS, NG	10/05/2018

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
TINCAN/LAGOS, NG	Empty in Container Yard	10/08/2018		
TINCAN/LAGOS, NG	Gate Out Full	09/08/2018		
TINCAN/LAGOS, NG	Discharged	21/06/2018	MSC SOPHIE	NY823A
ANTWERP, VAN, BE	Transshipment Loaded	07/06/2018	MSC SOPHIE	NY823A
ANTWERP, VAN, BE	Transshipment Discharged	02/06/2018	MSC VALENCIA	NU819E
NEW YORK, NY, US	Loaded	22/05/2018	MSC VALENCIA	NU819E
NEW YORK, NY, US	Gate In Full	10/05/2018		
NEW YORK, NY, US	Empty to Shipper	08/05/2018		

RECEIVE EMAIL ALERTS

**([HTTP://WCF.MSCGVA.CH/PUBLICASMX/](http://wcf.mscgva.ch/publicasmx/)
VIEW RSS FEEDCONTAINERNUMBER=TCNU2645133)**

PRINT DETAILS AS PDF

SEND VIA EMAIL

Tracking results provided by MSC on 13.08.2018 at 19:38 W. Europe Standard Time

If you have any questions regarding the results of your shipment tracking results, please contact your local MSC team at the number below. Your right to use this interactive service is strictly limited to tracking containers shipped by MSC in which you have an interest. You shall not copy, download, reproduce, distribute, transmit or otherwise use any of the information and content on the MSC website unless for your own personal, non-commercial use or unless you have obtained prior express written permission to do so from MSC. Please note that reasonable efforts have been made to ensure that the service content is accurate and up-to-date, however all information is given without any guarantee or representation as to its accuracy and under no circumstances whatsoever shall MSC be liable for any direct, incidental, consequential, indirect, special or other damages, costs, losses or liabilities arising from reliance on any of the information or materials contained on the MSC website. The MSC Tracking application may not work for users that hide or anonymize their identity or location. MSC reserves the right to slow or stop entire access to MSC Track and Trace data by automated processes, without prior notice.

**MEDITERRANEAN SHIPPING COMPANY S.A.**Website www.msc.com

SCAC Code : MSCU

BILL OF LADING No.**MSCUWK003927****RIDER PAGE**

Page 1 of 1

CONTINUATION OF PARTICULARS FURNISHED BY THE SHIPPER - NOT CHECKED BY CARRIER - CARRIER NOT RESPONSIBLE (see Clause 14)

Container Numbers, Seal Numbers and Marks	Description of Packages and Goods (Continued on further Bill Of Lading Rider page(s), if applicable)	Gross Cargo Weight	Measurement
TCNU2645133 40' HIGH CUBE SEAL NUMBER: 6151319	1 UNPACKED OR UNPACKAGED OF 2010 LEXUS RX 350 BASE VIN 2T2BK1BA8AC039422	2,045.700 KGS.	
	1 UNPACKED OR UNPACKAGED OF 2009 TOYOTA VENZA BASE V#4T3ZK11A79U017319	1,755.400 KGS.	
	5 PACKAGE(S) OF (PALLET) T-SHIRTS	300.000 KGS.	
	1 UNPACKED OR UNPACKAGED OF 2011 TOYOTA VENZA BASE VIN:4T3ZK3BB2BU041102	1,755.400 KGS.	
	1 UNPACKED OR UNPACKAGED OF 2008 HONDA ACCORD EX- VIN:1HGCP26728A103906	1,545.840 KGS.	
	1 UNPACKED OR UNPACKAGED OF 2008 LEXUS RX 350 BASE V#2T2HK31U58C080845 HS CODE: 8512902000 HS CODE: 8703230190 FREIGHT PREPAID	1,855.190 KGS.	
X20180411653898			
SHIPPER'S LOAD, STOW, AND COUNT THESE COMMODITIES, TECHNOLOGY, OR SOFTWARE WERE EXPORTED FROM THE UNITED STATES IN ACCORDANCE WITH THE EXPORT ADMINISTRATION REGULATIONS. DIVERSION CONTRARY TO U.S. LAW PROHIBITED. BATTERY HAS BEEN DISCONNECTED AND GAS TANK DRAINED			
TOTAL NUMBER OF PACKAGES: 10		TOTAL 9,257.530 KGS.	

PLACE AND DATE OF ISSUE

**CHARLESTON -
22-MAY-2018**

SHIPPED ON BOARD DATE

22-MAY-2018SIGNED By MSC (USA) Inc. as Agent on behalf of the Carrier
MSC Mediterranean Shipping Company S.A.**CX0010**

U.S. Edition - 02/2015